

I. Request

1. The Minister of Justice requested the National Data Protection Commission (CNPd) to express its opinion on a proposed Agreement to be concluded between the Portuguese Republic and the Federative Republic of Brazil regarding the Exchange of Information Related to Criminal Records and Criminal Backgrounds (hereinafter referred to as the "Agreement").
 2. The CNPD issues this opinion within the scope of its powers and competencies as the Supervisory Authority for the processing of personal data, conferred by paragraph 1 of article 43 and by subparagraphs a) and c) of paragraph 1 of article 44, all of Law No. 59/2019, of August 8, which approves the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, or repression of criminal offenses or the execution of criminal sanctions, transposing Directive (EU) 2016/680 of the Parliament and of the Council, of April 27, 2016.
 3. Considering the "mutual trust relationships that preside over bilateral legal and judicial cooperation, developed under the Treaty on Mutual Legal Assistance in Criminal Matters" concluded between Brazil and Portugal, this Agreement aims to regulate the transmission between the Parties of information related to the Criminal Record and Criminal Backgrounds of nationals of the other Party, as well as the obligations for the retention of this information and the rules to be observed by the Parties in response to a request for information extracted from the criminal record (article 1).
 4. It is stated in its preamble that the Agreement in question takes into account the Treaty on Mutual Legal Assistance in Criminal Matters concluded between the Portuguese Republic and the Federative Republic of Brazil, which, however, does not address the subject matter of this Agreement.
 5. As well as the Convention on Judicial Assistance in Criminal Matters concluded among the Member States of the Community of Portuguese Language Countries, which provides for cooperation in the exchange of information related to the criminal backgrounds of suspects, defendants, and convicted persons.
- 1 Approved for ratification by Resolution of the Assembly of the Republic No. 4/94, and ratified by Decree of the President of the Republic No. 2/94, of February 3, 1994. Available at <https://files.diariodarepublica.pt/1s/1994/02/028a00/05350538.pdf>.
- 2 Approved by Resolution of the Assembly of the Republic No. 46/2008, of September 12, 2008. Available at <https://files.dre.pt/1s/2008/09/17700/0663506640.pdf>.

PAR/2025/12

6. It is provided in article 17 that: "1 The Contracting States may proceed with the exchange of information related to sentences or subsequent measures concerning nationals of the other Contracting States. 2 Any of the Contracting States may request from the other information about the criminal background of a person, indicating the reasons for the request. The requested State satisfies the request to the same extent that its authorities can obtain the requested information in accordance with its domestic law."
7. However, nothing is stated in that context regarding the terms under which such a request and exchange should proceed, nor what the rights of data subjects are in that context, so these aspects shall be governed by the Agreement currently under analysis.

II. Analysis

i. On the transfer of personal data to Brazil

8. This bilateral agreement provides for the transfer of personal data related to criminal backgrounds from Portugal to Brazil, as well as in the reverse direction, and is therefore covered by the specific regime for transfers of personal data to third countries, set forth in Chapter V of Law No. 59/2019, of August 8, without prejudice to the necessity of complying with the remaining legal provisions contained in this diploma.
9. According to article 3 of Law No. 59/2019, of August 8, data related to criminal convictions constitutes personal data, insofar as it relates to an identified or identifiable individual.
10. Thus, the execution of this Agreement implies the processing of personal data and expressly

provides in its article 11 rules on the processing and transfer of such data, as well as the subsequent use of personal data, the processing of which seems to result from the requests for assistance regulated by articles 4 and 5 of the Agreement.

11. In this regard, it is necessary to assess, first and foremost, the adequacy of the level of protection of personal data in the Federative Republic of Brazil, as this may result in the need to include specific data protection norms in the Agreement, as a binding instrument for the Parties, that allow for the addressing of any deficiencies in the domestic law of the third country and provide adequate guarantees regarding the protection of personal data.

3 This is the Law that transposed Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, 2016.

1v.

PAR/2025/12

12. Law No. 59/2019, of August 8, establishes the rules regarding the protection of individuals concerning the processing of personal data by competent authorities for the purposes of prevention, detection, investigation, or repression of criminal offenses, transposing into the domestic legal order Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, and requires that the processing of personal data be carried out with strict respect for the rights, freedoms, and guarantees of individuals (paragraph 1 of Article 4), being collected for determined, explicit, and legitimate purposes, adequate and limited to the minimum necessary for the pursuit of the purposes for which they are processed (subparagraphs b) and c) of paragraph 1 of Article 4).

13. In the absence of an adequacy decision, the GDPR provides that transfers may only be made if adequate guarantees are provided by the data controllers and on the condition that data subjects enjoy enforceable rights and have effective legal remedies available (paragraphs 1 and 2 of Article 46), ensuring an adequate level of protection equivalent to that guaranteed within the European Union.

14. Since Brazil does not benefit from an adequacy decision, the international transfer of personal data can only occur if adequate guarantees regarding the protection of personal data have been provided through a legally binding instrument (cf. subparagraph a) of paragraph 1 of Article 39 of the aforementioned Law).

15. It is important to note that in the area of legal instruments for data protection, Brazil has not acceded to Convention No. 108 of the Council of Europe, open for signature by non-member countries of the Council of Europe, and that there is no specific data protection legislation in force regarding the subject matter of this Agreement.

16. This Agreement constitutes a legally binding instrument, and it is therefore necessary to ensure that it includes adequate guarantees regarding the protection of personal data. The extent of the guarantees to be introduced depends on the level of data protection existing in the third country. In this regard, the Guidelines of the European Data Protection Committee should be highlighted.

17. According to the jurisprudence of the Court of Justice of the European Union, it is not required that the third country ensures a level of protection identical to that guaranteed by the legal order of the Union, but that it effectively ensures, by virtue of its domestic legislation or its international commitments, a level of protection of fundamental freedoms and rights substantially equivalent to that conferred within the European Union (see Judgment Schrems, C-362/14, EU:C:2015:650, paragraphs 73 and 74).

18. Only in this way will it be possible to ensure that the protection of personal data processed in the European Union is not circumvented, extending the necessary protection to the rights and freedoms of individuals.

19. Thus, it will be necessary to verify whether the Federative Republic of Brazil presents a framework compatible with the transmission of personal data in the area subject to the Agreement.

ii. The Brazilian legal framework

20. Brazil constitutionally enshrines, in Chapter I, Title III - On Individual and Collective Rights and Duties - the guarantee of the right to personal data protection, including in digital media (item LXXIX of the Constitution of the Federative Republic of Brazil).

21. It also has an Independent Data Protection Authority (the National Data Protection Authority) and a General Data Protection Law (Law 13.709, of August 14, 2018), which guarantees the privacy of

personal data, even in cases where the data subject to processing originates from outside the national territory, provided that it results from communication or shared use of data with Brazilian data controllers, as long as the country of origin provides a level of protection adequate to that Law (Article 4, Item IV).

22. However, Law 13.709 is not applicable to the processing of personal data carried out for exclusive purposes of public security, defense, and activities of investigation and repression of criminal offenses (cf. subparagraph d), of item III, of Article 4).

23. Specific legislation exists. However, such legislation is not yet in force, and there is only a Draft Law related to this matter.

24. On the other hand, it is not relevant, as stated in the official letter, that the wording of Article 11 is in accordance with Decision/Framework 2009/315/JAI, of 26/02/2009, precisely because its objective and subjective scope is limited to the transfer of data between countries of the European Union, which are therefore governed by Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, 2016, which establishes the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, and repression of criminal offenses or the enforcement of criminal sanctions, which, in the Portuguese legal order, was transposed by the aforementioned Law No. 58/2019.

2v.

PAR/2025/12

25. In this regard, that is, in the absence of specific legislation providing parameters for the protection of personal data in the context of public security, criminal investigation, and the repression of criminal offenses, it is up to doctrine and jurisprudence to resort to legal principles that, by nature and definition, are vague and imprecise.

26. Thus, in the absence of applicable data protection legislation in the scope of this Agreement that specifically regulates the fundamental right to the protection of personal data, the text of the Agreement must contain all the norms that ensure that the level of protection of data processed under this instrument is essentially equivalent to that guaranteed in the European Union.

iii. From the text of the Agreement

27. According to Article 2, cooperation between the States Parties shall be carried out taking into account their respective Domestic Law and this Agreement, through direct cooperation between their respective competent authorities, considering the principles of effectiveness and rationality of means. Regarding this aspect, it has already been made clear that it is insufficient to consider, regarding data protection, Brazilian domestic law, due to the absence of specific norms in this regard.

28. The competent authorities are indicated and are: the Directorate-General for the Administration of Justice - Ministry of Justice (on the Portuguese side), and the Federal Police - Ministry of Justice and Public Security (on the Brazilian side) cf. Article 4, which is of particular importance. However, nothing is mentioned regarding the entities before which data subjects may exercise their rights, which must be clarified.

29. The periodicity of the information transmission and who is responsible for initiating such transmission is provided for.

30. Thus, the information is sent officially as soon as possible and, in any case, with a monthly periodicity and electronically in the case of new entries of convictions issued in the respective State against nationals of the other Party, which must also transmit as quickly as possible the information regarding subsequent alterations or deletions of information contained in the Criminal Record (items 1 and 2 of Article 5). Additionally, reference is made to the content of point 66 of this Opinion, below.

31. It is indicated in the same article that, at the request of one of the States Parties, a copy of the conviction and subsequent measures and any other related documents may be transmitted, so that the State receiving the information can consider whether additional measures are required at the national level.

32. It is also provided that nationals of each of the Parties may request and obtain Criminal Record certificates from the competent services of the other Party, under equal circumstances with nationals of that State, which facilitates, from the outset, the access of data subjects to their data.

33. In Article 6, the scope of compliance with the request is limited: criminal records contained in the

Criminal Record may only be sent to the competent authority of the requesting Party to the extent that the competent authority of the requested Party can request them for the purposes of Criminal Proceedings. It should be noted that the Agreement requires that, at the time of the request, the purposes for which the information is requested be indicated, which will allow the requesting State to assess the legality of the request for the use of those personal data (item 3 of Article 8), which must comply with the requirements of the final part of item 1 of Article 6, thus providing assurance regarding the scope of data transmission.

34. Item 2 of Article 6 establishes the possibility of processing received data, registering them in the Criminal Record of the requesting Party whenever the sentence or decision pertains to nationals of that Party and constitutes a crime provided for in its domestic law.

35. Regarding domestic law, such processing is provided for in item c) of item 1 of Article 7 of the Criminal Identification Law, approved by Law No. 37/2015, of May 5, in its current wording, which provides for the registration, in the Criminal Record, of "Extracts of convictions issued by other foreign courts regarding Portuguese nationals and foreigners residing in Portugal, over 16 years old [...]", although it makes the legality dependent on the fact that "they are communicated to Portugal under the terms of a convention or international agreement in force, provided that they refer to facts classified as crimes under Portuguese law and allow for the identification of the person to whom they refer." From this norm, the necessity of an agreement regulating such matters is derived.

36. The object of transmission in the context of a Criminal Proceeding is indicated (item 1 of Article 9), with the specific data for fulfilling the obligation being explicitly stated in Article 12 and in Annex I, as will be referred to below. The same does not occur concerning requests for purposes other than a Criminal Proceeding, which are not minimally identified, with a vague reference to domestic law as a source of legitimization.

37. It should be noted that the Agreement under analysis aims to regulate the transmission of information about convictions for the purposes of a Criminal Proceeding, but also for "any duly identified purpose other than the criminal proceeding" (item 1 of Article 8). The Law does not define what the purposes in question are, although it rightly imposes that these be expressly indicated in the information requests (item 3 of Article 8).

38. In this regard, it should be noted that such a purpose is not inscribed in the Criminal Identification Law, which, regarding the transmission of data to third States, only admits it when it aims at the instruction of...

PAR/2025/12

criminal proceedings, and with the authorization of the member of the Government responsible for the area of Justice (subparagraph h) of paragraph 2 of Article 8 of the Criminal Identification Law).

39. In fact, it is explicitly stated that "The following entities may also access criminal record information, exclusively for the purposes provided for each of them: [...] h) Foreign authorities or entities, with the authorization of the member of the Government responsible for the area of justice and under the same conditions as the corresponding national authorities, for the instruction of criminal proceedings," which is inconsistent with the text of the Agreement under analysis.

40. Thus, Article 11 aims to specifically regulate the matter of data protection, distinguishing two situations: the processing carried out for the purposes of a criminal proceeding (paragraph 1) or for purposes other than the criminal proceeding (paragraph 2).

41. This provision must be read in conjunction with what is established in Article 9, which sets out the types of information to be sent to the requesting Party when requested in the context of a criminal proceeding (paragraph 1) or for other purposes (paragraph 2).

42. Regarding the information requested in the context of a criminal proceeding, the requested Party must transmit information relating to: convictions issued in the Party of nationality and recorded in its criminal record; convictions issued by third States that have been communicated to it and recorded in its criminal record.

43. Considering that in Annex I (page 10), related to the form for filling out the available information regarding the targeted individuals, there is a field that justifies the non-transmission of personal data to one of the Parties, due to "The undersigned authority confirms that [...] the criminal record of the person contains information about convictions, but the State of conviction has communicated that this

information cannot be retransmitted for purposes other than a criminal proceeding," it is suggested that the possibility of refusal to transmit information - and, consequently, the non-sending of personal data - for this reason be included in Article 9.

44. Under the current regulations for the protection of personal data in the Portuguese legal system, data may only be processed when they comply with the principles of adequacy, proportionality, and minimization.

45. Such categories of data to be transmitted are described in Annex I and are provided for in Article 12, which stipulates that information must (subparagraphs a) and b) of paragraph 1) or may (paragraph 2) be transmitted to the requesting Party. Regarding the latter, it is stated that "in addition to what is mentioned in the previous number, the competent authorities may transmit any other information about convictions recorded in the criminal record." In fact, the principle of purpose constitutes a limit to the transmission of data, since data may only be processed for determined and precise purposes, and when there is a lawful basis for their processing, and also that the principle of minimization constitutes an obstacle to the transmission of unnecessary or useless data, so the request must indicate the purposes for which the data is intended, in order to ensure that the data to be sent is not excessive, which is safeguarded in the Agreement.

46. Furthermore, it should be noted that processing for purposes other than those that governed its collection, under the current legislation in Portugal, is subject to the constraints provided for in Article 7 of Law No. 59/2019, of August 8, in that it is stipulated that the processing of personal data is permitted, by the same or another data controller, for purposes different from those for which the personal data were collected, provided that these purposes fall within the aims set out in Article 1 (prevention, detection, investigation, or repression of criminal offenses or enforcement of criminal sanctions) and provided that the controller is authorized by law to process the personal data for that purpose and the processing is necessary and proportional to that other purpose.

47. Thus, it is necessary to ensure that the request explicitly states the purposes for which the data contained in the Criminal Record is requested, so that the requested State, in the case of Portugal, can assess the legality of the data transmission.

48. Regarding the data to be transferred in the context of a Criminal Proceeding, they are shown to be adequate, relevant, and not excessive in relation to the purpose for which they are intended.

49. Regarding the verification of the adequacy, relevance, and non-excessiveness of the data processed for other purposes, since these are not specified in the Agreement, the CNPD cannot issue any judgment, as it is unaware of them.

50. Article 11 stipulates that the data must be accurate and up to date, and reasonable measures must be adopted so that inaccurate or incomplete data are subsequently rectified or deleted.

51. In this regard, it is established in the final part of paragraph 2 of Article 5 that the information retained must be kept up to date, with the introduction of changes and deletions that have occurred, which is consistent with the principle of accuracy required in matters of personal data protection.

However, for greater clarification, a similar provision should be introduced in Article 11, as it provides for the right of data subjects to rectify the data (correction of inaccuracies), and it should be imposed that when the data is rectified/altered following the exercise of the right of rectification by a data subject, this should also be immediately communicated to the other Party.

PAR/2025/12

52. Thus, an obligation must be added for the Responding Party to notify the Receiving Party of the data whenever the personal data requires rectification or must be deleted, or is subject to other restrictions, and consequently, the obligation for the Receiving Party to comply with this notification must be provided for.

53. It is also foreseen that personal data cannot be retained indefinitely and may only be retained for the period necessary to achieve the purpose for which they were subsequently transferred. It is understood that, in this case, it may be difficult to establish a concrete deadline. In this context, it should be added, for greater clarity, that the data must be definitively deleted after this period.

54. It should also be indicated in the Agreement from which entity the rights can be exercised—whether from the entities that carry out the transmission or from the respective Criminal Records—and a norm should be explicitly stated that guarantees administrative and/or judicial

recourse for the data subjects, which must be guaranteed in relation to any processing of personal data resulting from this Agreement.

55. Regarding this aspect, it is noted that the reference provided in paragraph 2 of Article 11, which states that the personal data transmitted for purposes other than criminal proceedings may only be used by the Requesting Party "in accordance with Domestic Law," is inadequate for the reasons mentioned above. Therefore, it is recommended that the exact conditions under which such use may occur be integrated into the Agreement.

56. Article 7 of the Agreement establishes the duty of custody of the data by the Requesting State, "for the purposes of possible retransmission." However, it does not specify the situations in which such retransmission may occur.

57. This norm, which should be repositioned in the article on the processing of personal data, must clearly distinguish between two situations: third parties within the same country, and third parties located in a third country, which means that there is a further transfer. Thus, it must be expressly provided that communication to third parties, of whatever nature, is subject to prior authorization from the Responding Party, which must be requested and answered in writing, duly substantiated.

58. It must be made explicit that such confidential information, documents, and personal data received by the competent authorities of the Parties under this Agreement may only be transferred to third parties if written consent is obtained from the Responding Party and provided that adequate legal guarantees regarding the protection of personal data are offered, in accordance with International Law and applicable Domestic Law.

59. Regarding the communication of data to third parties, it is noted that the Agreement is also silent on the possibility of the competent Brazilian (or Portuguese) authorities receiving personal data communicating that data to other entities within the same country. This is a matter of utmost importance and must be regulated in this Agreement. Firstly, personal data should not be subsequently communicated, in principle, to other entities in the destination country, except in duly substantiated situations and with the knowledge of the Responding Party. Furthermore, it must be specifically safeguarded in the Agreement that only competent authorities for the purposes stated in Article 1 of Law No. 59/2019 should be recipients of this personal data. Indeed, it is necessary to ensure that personal data processed in the context of prevention, detection, investigation, or repression of criminal offenses or enforcement of sanctions are not subsequently processed for other purposes and by other types of authorities.

60. It should also be added that the Receiving Party of the data is obliged to respect any restrictions to which the personal data are subject.

61. It cannot be overlooked that Portugal is obliged to comply with a wide range of legal instruments of the European Union, which impose clear restrictions on the communication of personal data to third countries (e.g., transfer of data relating to applicants for international protection).

62. The following rights of the data subject are provided for in paragraph 5 of Article 11: right to information, right of access, right to correction/rectification of inaccurate data, remedy of omissions, right to deletion of improperly recorded/deleted data, and right to consultation.

63. In this context, it should be provided that if a person whose data has been subject to a transfer requires access, the Responding Party shall provide access to that data directly and correct it, unless such request can be refused under International Law and its Domestic Law.

64. It should be expressly provided that when a State verifies the existence of inaccuracy in the data, it must communicate this to the other State Party, so that this State can also comply with the principle of integrity and accuracy of the data.

65. On the other hand, any derogations from the rights must be duly specified in the text of the Agreement, in order to assess the concrete conditions under which this may occur in a democratic society.

6 A small lapse is noted consisting of the duplication of a norm in paragraphs 5 and 6 of Article 11.
5v.

PAR/2025/12

66. Considering the specificity of the police and judicial context, these rights may be partially or totally derogated, based on justifications provided for by law, with the possibility of their justification being

verified by the Control Authority, but there can be no a priori denial of the exercise of any right in order to comply with the Portuguese constitutional framework and European Union law.

67. It is also established that all information, requests, and responses, as well as any other pertinent information, are transmitted electronically or, in case of temporary impossibility, by any means capable of leaving a written record and under conditions that allow the competent authority of the receiving Party to verify their authenticity. The CNPD emphasizes that channels must be created that, given the sensitivity of the data being transmitted, ensure that there is no possibility of unauthorized access by those who should not know the data, as well as regarding its conservation.

68. Notification of data breaches to the other Party is provided for, which must include a description of the incident, including its immediate impact, and the relevant measures adopted or proposed to correct the breach and mitigate any adverse effects, which is welcomed.

III. Conclusions

69. With the grounds set forth above, the CNPD understands that:

- a) It is essential that the text of the Agreement contains provisions that address the lack of data protection legislation in this domain in the Federative Republic of Brazil, so that adequate guarantees of personal data protection provided by Portuguese law and European Union law are ensured;
- b) To the extent possible, it should be specified for what other criminal purposes, other than those of the process, the processing of personal data covered by the Agreement is permitted and the categories of personal data associated with them should be indicated;
- c) The Agreement must contain obligations related to the security of personal data processing, and the means and effective conditions under which international data transfers occur should be clarified;
- d) The provisions regarding the processing of personal data should be elaborated, namely, the specific conditions for the exercise of rights, the conditions under which such rights may be derogated, which entities are responsible for satisfying the rights of the data subject, and whether the data subject can exercise them indiscriminately before one or the other Party State;
- e) An obligation should be added for the requested Party to notify the receiving Party of the data whenever the personal data requires rectification or should be deleted, or subject to other restrictions, and consequently, the obligation for the receiving Party to comply with this notification should be provided for;
- f) Article 7 of the Agreement establishes the duty of custody of the data by the Requesting State, "for the purposes of possible retransmission." This provision should be repositioned in Article 11, specifying the situations in which such retransmission may occur and clearly distinguishing two situations: one being a further transfer. Thus, it should be expressly provided that communication to third parties, of whatever nature, is subject to prior authorization from the requested Party, which must be requested and responded to in writing, duly substantiated;
- g) Organizations are subject to the condition that there are adequate guarantees regarding data protection in the destination country;
- h) It should also be added that the receiving Party of the data is obliged to respect any restrictions to which the personal data are subject;
- i) Lastly, the Agreement should contain a provision regarding administrative and/or judicial remedies for data subjects, which must be guaranteed in relation to any processing of personal data resulting from this Agreement.

Lisbon, February 9, 2025

Paula Meira Lourenço (President)

6v.